

Amendment No. 1 to SB0527

Gardenhire
Signature of Sponsor

AMEND Senate Bill No. 527*

House Bill No. 809

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Title 43, Chapter 8, Part 1, is amended by adding the following as a new section:

(a) The manufacturer or seller of a pesticide registered with the commissioner in accordance with § 43-8-104 and with the federal environmental protection agency (EPA) under the federal Insecticide, Fungicide, and Rodenticide Act (FIFRA) (7 U.S.C. § 136 et seq.), is not liable in a civil action related to the labeling of the pesticide, including a products liability action alleging a failure to warn under title 29, chapter 28, if the pesticide bore a label approved by the EPA under FIFRA at the time of sale.

(b) Subsection (a) does not apply if a determination has been made by the EPA that a manufacturer knowingly withheld, concealed, misrepresented, or destroyed material information regarding the human health risks of such pesticide in order to obtain or maintain approval of its label by the EPA.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.